

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liabile-D excess burden	Gross outcome error	Total expenditures
American	0.290	0.319	0.006	0.450	0.317
Trial Fee-Shifting	0.241	0.238	0.022	0.354	0.238
Complete Fee-Shifting	0.352	0.186	0.006	0.408	0.267